

**Court No. - 29**

**Case :-** WRIT - C No. - 31443 of 2019

**Petitioner :-** Imran Sabir

**Respondent :-** State Of U.P. And 3 Others

**Counsel for Petitioner :-** Pankaj Agarwal

**Counsel for Respondent :-** C.S.C.,Baleshwar Chaturvedi

**Hon'ble Pankaj Mithal,J.**

**Hon'ble Saral Srivastava,J.**

Heard Pankaj Agarwal, learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for respondent No.2.

The challenge is to the recovery citation dated 03.09.2019 whereunder a sum of Rs. 6,66,599/- is being recovered as arrears of electricity dues.

The submission of learned counsel for the petitioner is that he had been paying electricity dues regularly as per the monthly bills raised. He has annexed the statement of bills and the payments and points out that the bill dated 17.08.2018 was for Rs. 3,664/- and the petitioner deposited a sum of Rs. 8,000/- on 20.10.2018. Thus, in the next bill, the excess amount was adjusted and only a bill of Rs. 1,460/- was raised on 25.10.2018. This amount increased to Rs. 2,627/- in the month of November, 2018, but thereafter the bill was exorbitantly increased to Rs. 60,036/- on 24.08.2018 and Rs. 2,54,208/- on 11.01.2019.

This is patently illegal as nowhere the bill of the petitioner ever exceeded Rs. 3,000/- to 4,000/- in a month.

In view of the above, the dispute raised by the petitioner is regarding the correction of electricity bills especially the bill dated 24.08.2018 and 11.01.2019 and thereafter.

The aforesaid dispute with regard to the amount of the electricity bill can be raised by the petitioner in accordance with Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005.

In view of the above, we dispose off the writ petition with the liberty to the petitioner to raise the dispute regarding correction of the bill before the Executive Engineer within a period of three weeks from today. In case any such dispute is raised, the Executive Engineer shall consider and decide it by speaking order after affording opportunity of hearing to the petitioner.

The recovery issued against the petitioner would abide by the decision of the Executive Engineer so taken.

The writ petition stands **disposed off**.

**Order Date** -: 1.10.2019

Nirmal Sinha